

A.I. ACTION PLAN COMMENTS

To whom it may concern:

The theft of copyrighted material by Big Tech companies has gone on way too long with DMCA. The threat of Artificial Intelligence and companies like Google and Open A.I. copying without consent of copyright owners' and creators' materials is unjust. Copying without consent isn't fair use ... it is theft of intellectual property to unjustly enrich these companies at the expense of creators and copyright owners. Companies like Google's YouTube have aided and abetted the illegal uploading of copyrighted content for years as they hide behind DMCA.

My 84-year-old client, Sam Sherman, President of Independent-International Pictures Corp., has had his film library illegally pirated and uploaded on Youtube for years. Takedown notices are futile and protecting one's exclusive content on these platforms is a game of whack a mol. It is time to make companies like Google pay in court for their secondary infringement of copyrighted materials. I am sure they would prevent illegal uploading from continuing if they faced penalties as a secondary infringer ... but an antiquated, unfair and unjust DMCA policy protects them. They should no longer be protected by outdated policies.. Section 512 of the Copyright Act needs to be repealed so secondary infringers like Google are accountable for their negligent actions when it comes to copyright infringement, especially as companies like Open A.I. have admitted to scraping content off YouTube.

In addition, Google's content ID system is flawed and inconsistent. If Google can map the country and world, certainly they can figure out who owns what and provide copyright owners with some protections. Why don't they try and figure out who owns what first and work with the Copyright Office and the Registrations on file? That would be a start. Ironical that they can't seem to figure out who owns what but they can allow others to illegally upload ... and allow the infringers ... and themselves, to monetize illegally uploaded materials. The U.S. Government has allowed this theft to go unchecked and there is no reason to believe Google cares because they do not face any legal responsibility for illegal uploads. The same will be true if they copy without the consent of copyright owners and creators to advance their A.I. initiatives. The creator and copyright owners should not have to police their works. INSTEAD ... Big Tech companies and platforms like Google should protect the rights of producers and copyright owners .. especially if they have been put on notice time and time again.

If Google or Open A.I. or any company wants to license the content for Artificial Intelligence training, they need to seek out copyright owners and seek the rights to do any copying or other use. These are exclusive rights that a creator and /or copyright owner are entitled to. No more free passes for multibillion dollar companies to steal and profit from someone else's exclusive work without being liable for copyright infringement. It is unjust enrichment. There is a right way to address the use of a copyright owner's materials and exclusive rights. Stealing is not fair use. Licensing isespecially if the parties can agree to terms. Why should these Big Tech companies get a free ride and a right to steal?

Signed,
David Sehring
Drive-In-Sanity Films LLC/
Agent for Independent-International Pictures Corp.